

Short title
and con-
struction.

3. This Act may be cited as the Land Settlement Amendment Act, 1921, and the Land Settlement (Facilities) Act, 1919, and this Act, so far as it amends that Act, may be cited together as the Land Settlement (Facilities) Acts, 1919 and 1921, and the Land Settlement (Scotland) Act, 1919, and this Act, so far as it amends that Act, may be cited together as the Land Settlement (Scotland) Acts, 1919 and 1921.

CHAPTER 44.

An Act to make provision for the modification of the charges which may be made in respect of water undertakings. [17th August 1921.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Modification
of provisions
affecting
water
charges.

1.—(1) Where on the application of any water undertakers it appears to the Minister that, for the purpose of meeting any increase in the cost and charges of and incidental to the carrying on of the undertaking attributable to circumstances arising since the fourth day of August, nineteen hundred and fourteen, which were beyond the control of, and could not have been reasonably avoided by, the undertakers, an order under this section should be made with regard to the undertaking, the Minister may, if he thinks fit, by order—

- (a) provide for modifying any statutory or other provision affecting or regulating charges to be made by the undertakers, and of any statutory or other provisions consequential thereon or supplemental thereto, in such manner and subject to such conditions as may be just and reasonable ;
- (b) provide for the modification of the provisions of any award or agreement which determine the price to be charged by the undertakers for the supply of water or for any fittings, materials, or service in connection therewith :

• Provided that no such modification shall be made except such as may be reasonably necessary for the purpose of meeting such increase, and that, where the undertakers are a company, no modification shall be made which, in the opinion of the Minister, would enable the company, with due care and management, to pay a dividend on the ordinary stock or shares of the undertaking in excess of the maximum rates prescribed for the undertaking or to make up the deficiency of any previous dividends which shall have fallen short of such rates.

(2) If at any time, on the application of the undertakers or a local authority, or, where the local authority are the undertakers, of twenty consumers, it appears to the Minister that the costs and charges of and incidental to the carrying on of the undertaking in respect of which an order has been made have substantially altered, the Minister may make an amending order revising the powers of charging, so, however, that the revised maximum charges shall not in any case be less than the statutory maximum charges applicable to the undertaking on the said fourth day of August, nineteen hundred and fourteen.

(3) An order under this section may—

- (a) fix the date as from which the charges authorised by the order shall become operative, being a date not less than four weeks after the order is made;
- (b) revoke, vary, or modify, in whole or in part, any order relating to a water undertaking made under the Statutory Undertakings (Temporary Increase of Charges) Act, 1918;
- (c) contains such incidental, supplemental, and consequential provisions as may be necessary to give full effect to the order.

8 & 9 Geo. 5.
c. 34.

2.—(1) Before making an order under this Act the Minister shall require the applicants to serve notice of the application for the order upon any local authority affected, and to give, in terms approved by him, and in such manner as he may consider best adapted for informing any other persons affected, public notice of the application for the order, and as to the manner in which and the time within which the objections may be made, and as to the manner in which and the place where any documents submitted to the Minister in connection with the application may be inspected and copies thereof made

Procedure
for making
orders.

and purchased, and shall consider any objection which may be duly made, and in the event of any objection being made and not withdrawn shall cause an inquiry to be held.

(2) On the making of an order under this Act, notice shall be given of the making of the order and the effect thereof to any local authority or persons who have objected to the application for an order under the preceding subsection, and if within four weeks from the date of such notice any such local authority, or, where a local authority are the undertakers, twenty consumers, being persons who have so objected as aforesaid, give notice in writing to the Minister that they object to the order, and the objection is not withdrawn, or if for any other reason the Minister thinks it desirable, the order shall be provisional only, and shall not have effect unless and until confirmed by Parliament, but in any other case the order shall have effect as if enacted in this Act.

(3) Rules may be made by the Minister with respect to applications and other proceedings under this Act, including the payments to be made by persons making applications or objections, the publication and service of advertisements and notices, the making of representations and objections, the holding of inquiries, and the cost of such inquiries, and with respect to such other matters of procedure as may be necessary, and the rules with respect to the holding of inquiries may apply the provisions of section seventy-two of the Local Government Act, 1894, relating to local inquiries.

56 & 57 Vict.
c. 73.

Interpreta-
tion.

3.—(1) For the purposes of this Act—

The expression “the Minister” means the Minister of Health;

The expression “water undertakers” means any local authority, joint board, company, body, or person authorised to supply water by any Act of Parliament or order having the force of an Act of Parliament;

The expression “statutory provision” includes provisions of any order having the force of an Act of Parliament;

The expression “local authority” means the mayor, aldermen, and commons of the city of London in common council assembled, the council of any county or borough (including a metropolitan

borough) or urban or rural district, and, in relation to any water undertaking, means any such local authority the whole or any parts of whose area is within the limits of supply of the water undertakers.

(2) For the purpose of any Act of Parliament passed before or after the passing of this Act which refers directly or indirectly to a special Act conferring power on water undertakers, an order made under this Act shall be deemed to be a special Act.

4.—(1) This Act may be cited as the Water Undertakings (Modification of Charges) Act, 1921. Short title
and extent.

(2) This Act shall not extend to Scotland or Ireland.

CHAPTER 45.

An Act to authorise capital moneys belonging to the Duchy of Lancaster to be applied, up to an amount not exceeding one hundred thousand pounds, as revenues of the Duchy.

[17th August 1921.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Notwithstanding anything in any Act, any capital moneys belonging to the Duchy of Lancaster may, up to an amount not exceeding one hundred thousand pounds, be applied at any time while this Act is in force, as revenues of the Duchy. Power to
apply capital
moneys of
Duchy as
revenues.

(2) For the purpose of raising capital money to be applied in pursuance of this Act, any investments in the name of the Duchy or held by any persons in trust for the Duchy may be sold, and the moneys arising from the sale of any such investments shall be paid to the Receiver-General of the Duchy for the use of His Majesty.

2.—(1) This Act may be cited as the Duchy of Lancaster (Application of Capital Moneys) Act, 1921. Short title
and duration.

(2) This Act shall continue in force until the thirty-first day of December, nineteen hundred and twenty-one.